

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 21-012
Amendments to Title 5, Chapter 2 of the Chickasaw Nation Code
(Chickasaw District Court)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the official designation of the Chickasaw Nation was changed on July 12, 2002, in a notice published in the Federal Register.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 2 of the Chickasaw Nation Code (additions are shown in red, deletions are stricken through):

"SECTION 5-203.6 **CERTIFICATION OF TRUE COPIES.**

The Court Clerk is authorized to certify that a copy of any record in his office is a true and accurate copy of the record on file by signed stamp or writing placed on such copy, sealed with the seal of the Court Clerk's office, and in substantially the following form:

CERTIFICATE OF TRUE COPY

I hereby certify that the above and foregoing
_____ is a true, accurate and
exact copy of the original of same as it remains of
record on file in my office.

Clerk of the [District Court] ~~for~~ [Supreme Court]
THE CHICKASAW NATION ~~OF OKLAHOMA~~

Date

Certified copies of records shall be admissible as evidence without further authentication in all judicial and administrative proceedings of the Chickasaw Nation.

SECTION 5-204.1

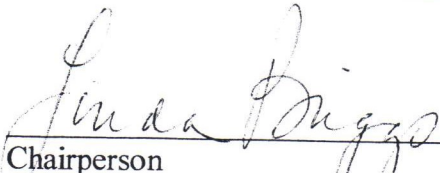
DEFINITIONS; STYLE OF PROCESS.

A. For purposes of this Article D, "Process" shall mean any documents used by the Court to acquire or exercise its jurisdiction over a person or specific property including all means whereby the Court compels the appearance of a person or compliance with its demands. Service of Process as defined in this Article D includes Process in both civil and criminal matters.

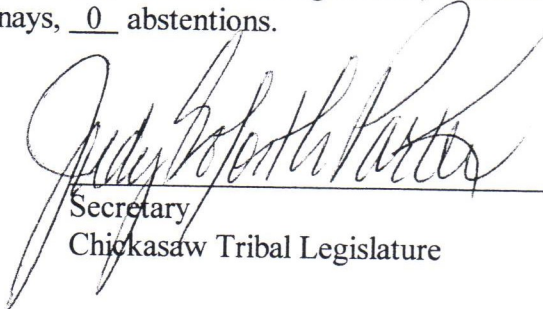
B. For the purpose of this Article D, "Subpoena" and "Subpoena *Duces Tecum*" shall be collectively referred to as "Subpoena."

C. The style of all Process shall be "The Chickasaw Nation of Oklahoma to:" and all Process shall be under the seal of the Court Clerk and shall be signed by the Court Clerk, and dated the day it is issued."

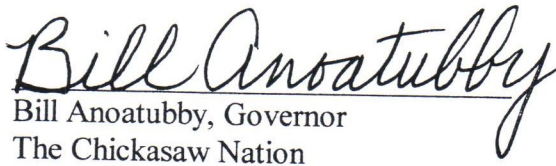
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on January 16, 2003, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: JAN 16 2004
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation: The official designation of the Chickasaw Nation was changed on July 12, 2002, in a notice published in the Federal Register. This resolution amends those sections of the Chickasaw Nation Code which contain the official designation of the Chickasaw Nation.

Requested By: Tim Colbert, Chairman
Court Development Ad Hoc Committee

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Court Development Ad Hoc Committee